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March 30, April 2, 2020

(788 Fed. Appx. 478); and *BERALDO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U.S. 951 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari). Recognizing that the Court has repeatedly declined to grant certiorari on this important issue—whether the right recognized in *Johnson v. United States*, 576 U.S. 591 (2015), applies to defendants sentenced under the mandatory Sentencing Guidelines—I will cease noting my dissent in future petitions presenting the question. I hope, however, that the Court will at some point reconsider its reluctance to answer it.

Rehearing Denied

No. 19–5526. *LAKE v. WILKIE, SECRETARY OF VETERANS AFFAIRS*, 589 U.S. 1140;

No. 19–5676. *JORDAN v. UNITED STATES*, 589 U.S. 1083;

No. 19–6215. *HAYNES v. ASSETS PROTECTION, INC.*, 589 U.S. 1109;

No. 19–6273. *LUCAS v. FLORIDA*, 589 U.S. 1143;

No. 19–6328. *BROWN v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U.S. 1144;

No. 19–6577. *SMITH v. HAYNES*, 589 U.S. 1150;

No. 19–6578. *SMITH v. WASHINGTON*, 589 U.S. 1150;

No. 19–6598. *HERCENBERGER v. MARTIN*, 589 U.S. 1169;

No. 19–6782. *MALLARD v. NEXT DAY TEMPS ET AL.*, 589 U.S. 1183; and

No. 19–6916. *JEFFERSON v. SUPREME COURT OF GEORGIA*, 589 U.S. 1215. Petitions for rehearing denied.

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Dismissals Under Rule 46

No. 18–1218. *BUCHWALD CAPITAL ADVISORS LLC, LITIGATION TRUSTEE TO THE GREEKTOWN LITIGATION TRUST v. SAULT STE. MARIE TRIBE OF CHIPPEWA INDIANS ET AL.* C. A. 6th Cir.

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Certiorari dismissed under this Court's Rule 46.1. Reported below: 917 F. 3d 451.

No. 19–7903. *BROWN v. UNITED STATES*. C. A. 5th Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 786 Fed. Appx. 501.

No. 19–7914. *MOSS v. UNITED STATES*. C. A. 5th Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 787 Fed. Appx. 225.

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Certiorari Dismissed

No. 19–7573. *DONAHUE v. SCALIA, SECRETARY OF LABOR, ET AL.* C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 789 Fed. Appx. 324.

No. 19–7597. *WAZNEY v. NELSON, WARDEN*. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 773 Fed. Appx. 768.

Miscellaneous Orders.

No. 19M119. *WALSH v. UNITED STATES*. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 19M120. *REBENSTORF v. GRANT*;

No. 19M121. *CRENSHAW v. JONES, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*;

No. 19M122. *WARREN v. ORMOND, WARDEN, ET AL.*; and

No. 19M123. *LOWERY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 19M124. *ARMSTRONG v. PENNSYLVANIA ET AL.*;

No. 19M125. *ARMSTRONG v. UNITED STATES ET AL.*;

No. 19M126. *ARMSTRONG v. AMTRAK POLICE*; and

No. 19M127. *ARMSTRONG v. GEICO INSURANCE*. Motions to direct the Clerk to file petitions for writs of certiorari out of time under this Court's Rule 14.5 denied.

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No. 19–7894. IN RE RENCHENSKI; and
No. 19–8026. IN RE HAMPTON. Petitions for writs of habeas corpus denied.

No. 19–7884. IN RE FRYE. Petition for writ of mandamus denied.

Certiorari Denied

No. 19–573. AL-AMIN *v.* WARD, COMMISSIONER, GEORGIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 932 F. 3d 1291.

No. 19–659. SALGADO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 929 F. 3d 1293.

No. 19–680. SEALEY ET AL. *v.* GILLIAM ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 932 F. 3d 216.

No. 19–690. NEVILLE *v.* DHILLON, CHAIR, EQUAL EMPLOYMENT OPPORTUNITY COMMISSION, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 280.

No. 19–710. CONNECTICUT FINE WINE & SPIRITS, LLC, DBA TOTAL WINE & MORE *v.* SEAGULL, COMMISSIONER, CONNECTICUT DEPARTMENT OF CONSUMER PROTECTION, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 932 F. 3d 22.

No. 19–956. CRAIG ET AL. *v.* O’KELLEY, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF TURNER, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 888.

No. 19–986. VOSBURGH ET AL. *v.* BURNT HILLS-BALLSTON LAKE CENTRAL SCHOOL DISTRICT ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 778 Fed. Appx. 54.

No. 19–990. SOUTHERN ILLINOIS STORM SHELTERS *v.* 4SEMO.COM, INC. C. A. 7th Cir. Certiorari denied. Reported below: 939 F. 3d 905.

No. 19–994. HILL *v.* JOHNSON ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 604.

No. 19–996. WATERS *v.* GEORGIA. Ct. App. Ga. Certiorari denied.

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No. 19–998. *COOK, INDIVIDUALLY AND AS NATURAL MOTHER TO COOK, ET AL. v. HOPKINS ET AL.* C. A. 5th Cir. Certiorari denied.

No. 19–1003. *KINUTHIA v. VELARDE, ACTING CHIEF, ADMINISTRATIVE APPEALS OFFICE, ET AL.* C. A. 1st Cir. Certiorari denied.

No. 19–1072. *ROTHSTEIN v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 939 F. 3d 1286.

No. 19–1075. *COPELAND v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–1102. *SMALL v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 944 F. 3d 490.

No. 19–1103. *INO THERAPEUTICS LLC ET AL. v. PRAXAIR DISTRIBUTION INC. ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 782 Fed. Appx. 1001.

No. 19–6410. *RAGER v. AUGUSTINE, WARDEN, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 947.

No. 19–6501. *FELICIANOSOTO v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 934 F. 3d 783.

No. 19–6800. *MITCHELL v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 227.

No. 19–6967. *BOYD ET AL. v. CALIFORNIA PUBLIC UTILITIES COMMISSION ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 922 F. 3d 929.

No. 19–7081. *ADEBOWALE v. WOLF, ACTING SECRETARY OF HOMELAND SECURITY, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 510.

No. 19–7086. *PREZIOSO v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 586.

No. 19–7088. *CORTEZ-ROGEL v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 761.

No. 19–7102. *MENDEZ v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 745.

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No. 19–7104. *PACHECO-ASTRUDILLO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 766.

No. 19–7112. *GALINDO-SERRANO v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 925 F. 3d 40.

No. 19–7131. *HANNA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–7493. *KIRVIN v. GRANT ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7513. *SMITH v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Va. Certiorari denied.

No. 19–7529. *WILLIAMS v. LITTON LOAN SERVICES ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 788 Fed. Appx. 819.

No. 19–7532. *WELSH v. FLORIDA*. Sup. Ct. Fla. Certiorari denied.

No. 19–7537. *SPICE v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 19–7541. *HURLES v. SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7542. *PELMEAR ET AL. v. O'CONNOR ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–7545. *PALMER v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 640.

No. 19–7546. *JORGE v. FLORIDA ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–7554. *HILLYGUS v. DOHERTY ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7556. *JACOBS v. MARICOPA INTEGRATED HEALTH CARE SYSTEM*. Ct. App. Ariz. Certiorari denied.

No. 19–7559. *JACKSON v. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT ET AL.* C. A. 11th Cir. Certiorari denied.

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No. 19–7563. *SPEED v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 19–7582. *ARELLANO v. PARAMO*, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 19–7583. *BYRD v. BOUTTE*, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 19–7591. *PAYNE v. MANGUM*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 187.

No. 19–7595. *MAJOR v. BAKER*, WARDEN. Ct. App. Nev. Certiorari denied.

No. 19–7600. *SUNDY v. FRIENDSHIP PAVILION ACQUISITION Co., LLC*. Ct. App. Ga. Certiorari denied.

No. 19–7605. *KANE v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 210 A. 3d 324.

No. 19–7609. *MAURICIO CASTILLO v. BACA*, WARDEN. Ct. App. Nev. Certiorari denied.

No. 19–7628. *GUYN v. KENT*, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 19–7644. *JONES v. GRIFFITH*, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 19–7660. *WEST v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 775 Fed. Appx. 38.

No. 19–7666. *WOODS v. JOYNER*, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 823.

No. 19–7676. *JACKSON v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 284 So. 3d 515.

No. 19–7679. *BROWNLEE v. HEARNS ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 775 Fed. Appx. 35.

No. 19–7708. *ALJINDI v. UNITED STATES ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7723. *BRAMMER v. MADDEN*, WARDEN. C. A. 9th Cir. Certiorari denied.

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No. 19–7734. *DENNIS v. JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–7740. *BELL v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 140.

No. 19–7759. *EMERS v. ILLINOIS.* App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2019 IL App (4th) 170254–U.

No. 19–7762. *AMERSON ET AL. v. ATLAS LAW FIRM, P. C., ET AL.* Ct. App. Colo. Certiorari denied.

No. 19–7791. *JACKSON v. PENNSYLVANIA.* Super. Ct. Pa. Certiorari denied. Reported below: 220 A. 3d 641.

No. 19–7813. *JAMERSON v. LEWIS, WARDEN.* Sup. Ct. Mo. Certiorari denied.

No. 19–7830. *PANTALEON-AVILES v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 624.

No. 19–7835. *RODRIGUEZ v. UNITED STATES.* C. A. 7th Cir. Certiorari denied.

No. 19–7836. *SALAHUDDIN v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 930 F. 3d 410.

No. 19–7838. *SHOCKEY v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 941 F. 3d 282.

No. 19–7839. *SANCHEZ v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 492.

No. 19–7851. *MARTINEZ-ALVARADO v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 829.

No. 19–7869. *WILSON v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 190.

No. 19–7873. *ALLEN v. UNITED STATES.* C. A. 4th Cir. Certiorari denied.

No. 19–7875. *GAY v. DAFFENBACH, WARDEN, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 732.

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No. 19–7876. *RICHARDSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 795.

No. 19–7881. *FARRINGTON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 404.

No. 19–7886. *MAHON v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7887. *JUVENILE FEMALE v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 786 Fed. Appx. 313.

No. 19–7896. *HUGHES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 798 Fed. Appx. 388.

No. 19–7898. *MURPHY v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 792 Fed. Appx. 232.

No. 19–7909. *KILMARTIN v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 944 F. 3d 315.

No. 19–7911. *CORNELIUS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 70.

No. 19–7916. *GELAZELA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 898.

No. 19–7917. *FELDMAN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 931 F. 3d 1245.

No. 19–7934. *BETTS v. UNITED AIRLINES, INC.* C. A. 7th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 577.

No. 19–7940. *FERNANDEZ MORALES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–7942. *PARSONS v. BLADES, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–7949. *DEVORE v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–7950. *VALENTINE v. NEBRASKA*. Ct. App. Neb. Certiorari denied. Reported below: 27 Neb. App. 725, 936 N. W. 2d 16.

No. 19–7967. *DURANT v. LAWRENCE, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 19–7970. *SHADE v. WASHBURN, WARDEN*. C. A. 6th Cir. Certiorari denied.

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No. 18–1455. ARCHDIOCESE OF WASHINGTON *v.* WASHINGTON METROPOLITAN AREA TRANSIT AUTHORITY ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 897 F. 3d 314.

Statement of JUSTICE GORSUCH, with whom JUSTICE THOMAS joins, respecting the denial of certiorari.

Because the full Court is unable to hear this case, it makes a poor candidate for our review. But for that complication, however, our intervention and a reversal would be warranted for reasons admirably explained by Judge Griffith in his dissent below and by Judge Hardiman in an opinion for the Third Circuit. See 910 F. 3d 1248, 1250–1254 (CA3 2018) (Griffith, J., dissenting from denial of rehearing en banc); *Northeastern Pa. Freethought Society v. Lackawanna Transit System*, 938 F. 3d 424, 435–437 (CA3 2019) (noting disagreement with D. C. Circuit).

At Christmastime a few years ago, the Catholic Church sought to place advertisements on the side of local buses in Washington, D. C. The proposed image was a simple one—a silhouette of three shepherds and sheep, along with the words “Find the Perfect Gift” and a church website address. No one disputes that, if Macy’s had sought to place the same advertisement with its own website address, the Washington Metropolitan Area Transit Authority (WMATA) would have accepted the business gladly. Indeed, WMATA admits that it views Christmas as having “‘a secular half’” and “‘a religious half,’” and it has shown no hesitation in taking secular Christmas advertisements. Pet. for Cert. 1. Still, when it came to the church’s proposal, WMATA balked.

That is viewpoint discrimination by a governmental entity and a violation of the First Amendment. In fact, this Court has already rejected no-religious-speech policies materially identical to WMATA’s on no fewer than three occasions over the last three decades. See *Good News Club v. Milford Central School*, 533 U. S. 98 (2001); *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819 (1995); *Lamb’s Chapel v. Center Moriches Union Free School Dist.*, 508 U. S. 384 (1993). In each case, the government opened a forum to discussion of a particular subject but then sought to ban discussion of that subject from a religious viewpoint. What WMATA did here is no different.

WMATA’s response only underscores its error. WMATA suggests that its conduct comported with our decision in *Rosenberger*

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because it banned religion as a *subject* rather than discriminated between religious and nonreligious *viewpoints*. But that reply rests on a misunderstanding of *Rosenberger*. There, the Court recognized that religion is not just a subject isolated to itself, but often also “a specific premise, a perspective, a standpoint from which a variety of subjects may be discussed and considered.” 515 U.S., at 831. That means the government may minimize religious speech incidentally by reasonably limiting a forum like bus advertisement space to subjects where religious views are unlikely or rare. But once the government allows a subject to be discussed, it cannot silence religious views on that topic. See *Good News Club*, 533 U.S., at 110–112. So the government may designate a forum for art or music, but it cannot then forbid discussion of Michelangelo’s David or Handel’s Messiah. And once the government declares Christmas open for commentary, it can hardly turn around and mute religious speech on a subject that so naturally invites it.

That’s not to say WMATA lacks a choice. The Constitution requires the government to respect religious speech, not to maximize advertising revenues. So if WMATA finds messages like the one here intolerable, it may close its buses to all advertisements. More modestly, it might restrict advertisement space to subjects where religious viewpoints are less likely to arise without running afoul of our free speech precedents. The one thing it cannot do is what it did here—permit a subject sure to inspire religious views, one that even WMATA admits is “half” religious in nature, and then suppress those views. The First Amendment requires governments to protect religious viewpoints, not single them out for silencing.

No. 19–446. VF JEANSWEAR LP *v.* EQUAL EMPLOYMENT OPPORTUNITY COMMISSION. C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 477.

JUSTICE THOMAS, dissenting.

This case presents the question whether the Equal Employment Opportunity Commission (EEOC) may continue to investigate an employer’s purported wrongdoing after issuing a right-to-sue notice to a private party who, in turn, has initiated her own litigation. The Seventh and Ninth Circuits have determined that Title VII of the Civil Rights Act of 1964, 78 Stat. 253, grants the

EEOC that power. See *EEOC v. Union Pacific R. Co.*, 867 F. 3d 843, 848 (CA7 2017); *EEOC v. Federal Express Corp.*, 558 F. 3d 842, 851–852 (CA9 2009). The Fifth Circuit, on the other hand, has concluded that the plain text of Title VII prohibits such investigations. See *EEOC v. Hearst Corp.*, 103 F. 3d 462, 469 (1997).

Though this split in authority is shallow, it directly implicates the EEOC's core investigative powers. If the Fifth Circuit is correct that issuing a right-to-sue notice terminates the EEOC's ability to investigate, then the EEOC may be wielding ultra vires power, impermissibly subjecting employers to time-consuming investigations. I would grant certiorari to determine whether the agency is operating within the confines of the authority granted by Congress.

I

A

A preliminary analysis of the text suggests that the EEOC may lack the authority to continue an investigation after it has issued a right-to-sue notice. The basic provisions governing the EEOC's role in investigating discrimination claims are found in 42 U.S.C. §2000e–5. As relevant here, the EEOC's duties are triggered when it receives “a charge . . . filed by or on behalf of a person claiming to be aggrieved.” §2000e–5(b); *University of Pa. v. EEOC*, 493 U.S. 182, 190 (1990). The EEOC must provide notice to the employer “within ten days, *and shall make an investigation* thereof.” §2000e–5(b) (emphasis added). “If the Commission determines *after such investigation* that there is reasonable cause to believe that the charge is true, the Commission shall endeavor to eliminate any such alleged unlawful employment practice by informal methods of conference, conciliation, and persuasion.” *Ibid.* (emphasis added). Otherwise, it will dismiss the charge. *Ibid.* “The Commission shall make its determination on reasonable cause as promptly as possible and, so far as practicable, not later than one hundred and twenty days from the filing of the charge.” *Ibid.* But “[i]f a charge filed with the Commission pursuant to subsection (b) . . . is dismissed by the Commission, or if within one hundred and eighty days from the filing of such charge . . . the Commission has not filed a civil action under this section[,] . . . or the Commission has not entered into a conciliation agreement to which the person aggrieved is a party, the Commission

. . . shall so notify the person aggrieved and within ninety days after the giving of such notice a civil action may be brought against the respondent named in the charge.” §2000e–(5)(f)(1); see also *Fort Bend County v. Davis*, 587 U.S. 541 (2019).

Regardless of how the EEOC may approach this process in practice, these statutory provisions set out a clear timetable and a sequential series of steps for the EEOC to follow. After giving notice to the employer, it must engage in an investigation that comes to a definitive end either because the EEOC has entered into a conciliation process or because it has dismissed the charge. Further, the EEOC must issue the right-to-sue notice after 180 days—60 days after the timeline contemplated by the statute for a reasonable cause determination, which triggers dismissal of a charge or conciliation efforts. Thus, at first glance, it appears that the more natural reading of these provisions is that Congress “expected the EEOC to complete investigations within 120 days[,]leaving an additional 60 days for the EEOC to determine whether suit should be filed.” *Hearst*, 103 F. 3d, at 467.

B

Whatever the correct interpretation of the text, however, the Ninth Circuit’s approach in *Federal Express*, 558 F. 3d 842, is highly problematic. The Ninth Circuit began by asserting that it was bound to enforce an EEOC subpoena if the agency’s jurisdiction was “plausible” and not “plainly lacking.” *Id.*, at 848 (internal quotation marks omitted). Next, the court noted that the EEOC has, through regulation, interpreted its own statutory authority to allow the agency to continue processing a charge after it has issued a right-to-sue notice. *Id.*, at 850; see 29 CFR §1601.28(a)(3) (2019). To cap off its analysis, the Ninth Circuit gave weight to the fact that the EEOC had further interpreted its own *regulation* allowing “‘further processing [of] the charge’” after issuing notice to “includ[e] further investigation.” *Federal Express*, 558 F. 3d, at 850 (citing EEOC Compliance Manual §6.4 (2006)). Thus, under this dual layer of agency interpretation, the Ninth Circuit concluded that Title VII permitted the EEOC to continue with its investigation after issuing a right-to-sue notice. The Ninth Circuit acknowledged that its reading conflicted with the Fifth Circuit’s decision in *Hearst*, 103 F. 3d 462. But it disagreed with the Fifth Circuit primarily because it viewed *Hearst* as conflicting with the EEOC’s role in vindicating the public’s

interest in eradicating employment discrimination.* *Federal Express*, 558 F. 3d, at 852.

The Ninth Circuit's analysis contains at least four flaws. Most egregiously, the Ninth Circuit failed to consider the most useful, and perhaps dispositive, evidence—the text of Title VII itself. Nor did it perform anything remotely resembling an independent assessment of that text. Even under *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837 (1984), courts are instructed to engage in their own analysis of the statute to determine whether any gap has been left for the agency to fill. *Id.*, at 843, n. 9; see also *INS v. Cardoza-Fonseca*, 480 U.S. 421, 447–448 (1987). The Ninth Circuit, by contrast, bypassed the statutory text entirely.

Second, the Ninth Circuit's approach to jurisdiction was highly suspect, if not outright erroneous. As the Ninth Circuit has elsewhere recognized, all administrative agencies “are creatures of statute, bound to the confines of the statute that created them.” *United States Fidelity & Guaranty Co. v. Lee*, 641 F. 3d 1126, 1135 (2011). This fundamental principle applies not only to substantive areas regulated by an agency but also to the agency's underlying jurisdiction. There is no basis for applying a “plainly lacking” standard when assessing the authority of an agency to act, let alone to issue wide-ranging subpoenas that consume the time and resources of employers.

Third, reliance on and deference to the EEOC's regulation also seems inappropriate under this Court's *Chevron* framework. The regulation was originally promulgated before this Court's decision in *Chevron*. See 29 CFR § 1601.28(a)(3) (1978). The associated rulemaking contains no indication that the agency invoked its interpretive authority or even believed it was interpreting the statute at all. See 42 Fed. Reg. 42025, 42030–42031, 47831 (1977); see also 37 Fed. Reg. 9214–9220 (1973). Thus, it is hardly self-evident that, even under our precedents, *Chevron* deference should apply. See *Barnhart v. Walton*, 535 U.S. 212, 222 (2002).

*The Ninth Circuit also relied in part on this Court's decision in *EEOC v. Waffle House, Inc.*, 534 U.S. 279 (2002), where this Court held that an employee's agreement to arbitrate employment disputes did not prevent the EEOC from pursuing victim-specific relief in court. But that decision conflicts with the principle that the EEOC takes a plaintiff as it finds him. See *id.*, at 303–312 (THOMAS, J., dissenting).

Last but not least, the Ninth Circuit’s invocation of the EEOC Compliance Manual not only assumes that the regulation is ambiguous—itself a dubious proposition—but also is premised on so-called *Auer* deference to the agency’s interpretation of its own ambiguous regulation. *Auer v. Robbins*, 519 U.S. 452 (1997). This doctrine has rightly fallen out of favor in recent years, as it directly conflicts with the constitutional duty of a judge to faithfully and independently interpret the law. See *Kisor v. Wilkie*, 588 U.S. 558, 592 (2019) (GORSUCH, J., concurring in judgment); *Perez v. Mortgage Bankers Assn.*, 575 U.S. 92, 112 (2015) (THOMAS, J., concurring in judgment).

II

Leaving the Seventh and Ninth Circuit’s highly questionable interpretation undisturbed has wide-reaching ramifications for employers subject to litigation in those Circuits. In this case, for instance, a former salesperson employed by petitioner VF Jeanswear LP filed a charge with the EEOC, alleging that she was demoted on the basis of her sex and age in violation of Title VII. § 2000e–2(a)(1). After she filed a complaint in state court, the EEOC issued her a right-to-sue notice, indicating that it would not finish processing her charge within the allotted 180-day timeframe. The former employee proceeded to litigate her claims in federal court, and the EEOC did not intervene.

Meanwhile, the EEOC continued with its own, far broader investigation, including a subpoena directing VF Jeanswear to “[s]ubmit an electronic database identifying all supervisors, managers, and executive employees at VF Jeanswear’s facilities during the relevant period,” including information such as the “position(s) held and date in each position” and, “if no longer employed, [the] date of termination, and reason for termination.” 2017 WL 2861182, *2 (D Ariz., July 5, 2017). Thus, the EEOC not only subjected VF Jeanswear to a second investigation, but it also issued a subpoena covering material that departed significantly from the employee’s original, individualized allegations. As the District Court noted in refusing to enforce the subpoena, the EEOC sought information regarding positions for which the employee never applied, and amounted to “a companywide and nationwide subpoena for discriminatory promotion, a discriminatory practice not affecting the charging party.” *Id.*, at *6.

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Because the textual argument against the EEOC's power to issue this subpoena seems strong, and the argument supporting it particularly weak, I respectfully dissent from the denial of certiorari.

No. 19–678. UNITED STATES EX REL. SCHNEIDER *v.* JPMORGAN CHASE BANK, N. A., ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition.

No. 19–726. JONES ET AL. *v.* LAMKIN, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY AS MARSHAL OF THE CIVIL AND MAGISTRATE COURT OF RICHMOND COUNTY, GEORGIA, ET AL. C. A. 11th Cir. Motion of National Fraternal Order of Police for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 781 Fed. Appx. 865.

No. 19–6156. HALPRIN *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 758.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

The facts underlying this petition are deeply disturbing. I write to explain why I nevertheless do not dissent from the denial of certiorari.

In December 2000, petitioner Randy Ethan Halprin and six others escaped from a Texas prison and robbed a sporting-goods store. During the robbery, Officer Aubrey Hawkins responded to a distress call and was fatally shot. The State of Texas tried Halprin and the other escapees separately for their roles in Officer Hawkins' death. Presiding over most of those trials, including Halprin's, was Judge Vickers Cunningham.

In 2003, a jury found Halprin guilty of capital murder and recommended the death penalty, and then-Judge Cunningham announced a death sentence. For the next decade, Halprin unsuccessfully sought appellate and collateral relief in the state courts. In 2014, he petitioned for a writ of habeas corpus under 28 U. S. C. § 2254, to no avail.

Years after the trial, Cunningham—no longer a judge—ran for a position as a county commissioner. In May 2018, a news outlet published that Cunningham had created a living trust for his

children that would have withheld payments had they married nonwhite non-Christians. (Halprin is Jewish, a fact that featured prominently at his trial.) A former campaign staffer of Cunningham's also relayed to the news outlet that the former judge used the acronym "T.N.D."—short for "Typical N*** Deals"—to refer to criminal cases involving black defendants. Record 19–70016.1120.

These developments prompted Halprin's counsel to investigate whether Cunningham had harbored bias against Halprin. Witnesses recounted that, shortly after Halprin's trial, Cunningham had referred to Halprin with derogatory terms like "f***n' Jew"—and that the former judge had also referred to Halprin's accomplices using similar slurs. *Id.*, at 19–70016.1064. Halprin's counsel further discovered that Cunningham had told campaign staffers that he sought public office to "save" his city from "n***s, wetbacks, Jews, and dirty Catholics.'" *Id.*, at 19–70016.1235.

On May 17, 2019, presented with this newly discovered evidence, Halprin filed another §2254 petition in Federal District Court. He asserted that Cunningham's bias constituted structural error depriving Halprin of his constitutional right to a fair trial. Halprin also requested that the federal court stay the proceedings so that he could exhaust his claim in state court, and then filed an application for habeas relief in the Texas Court of Criminal Appeals. (That court has since stayed Halprin's execution to allow a trial court to consider the claim of judicial bias.)

Meanwhile, the District Court transferred Halprin's recent §2254 petition to the Court of Appeals for the Fifth Circuit to determine whether it was an unauthorized "second or successive" petition. See 28 U.S.C. §2244(b).^{*} The Fifth Circuit recognized that Halprin had cited evidence of "horrible" "racism and bigotry" that, if true, would be "completely inappropriate for a

^{*}Section 2244(b)(2)(B) provides in pertinent part:

"A claim presented in a second or successive habeas corpus application under section 2254 that was not presented in a prior application shall be dismissed unless . . . (i) the factual predicate for the claim could not have been discovered previously through the exercise of due diligence; and (ii) the facts underlying the claim, if proven and viewed in light of the evidence as a whole, would be sufficient to establish by clear and convincing evidence that, but for constitutional error, no reasonable factfinder would have found the applicant guilty of the underlying offense."

judge.” *In re Halprin*, 788 Fed. Appx. 941, 942, n. 2 (2019) (*per curiam*). Nevertheless, the Court of Appeals held, Halprin’s filing was a second or successive petition under federal law because, “even if” Cunningham’s prejudice were “unknown to Halprin at the time,” the judicial-bias claim would have been “ripe” during the jury trial. *Id.*, at 943. The Fifth Circuit then concluded that Halprin could not satisfy § 2244(b)’s “‘strict’” requirements for authorizing a second or successive § 2254 application. *Id.*, at 945. Granting Halprin’s argument that judicial bias is “structural error” warranting an automatic retrial, the Fifth Circuit still found that Halprin could not show “by clear and convincing evidence that, absent such bias, no reasonable factfinder would have found Halprin guilty of the underlying offense.” *Id.*, at 944–945.

In this Court, Halprin contests whether his recent federal petition is “second or successive” at all. Drawing on *Panetti v. Quarterman*, 551 U.S. 930 (2007), and *Magwood v. Patterson*, 561 U.S. 320 (2010), Halprin contends that his federal habeas claim cannot count as “second or successive” under § 2244(b) because he never “‘had a full and fair opportunity to raise the claim in [his] prior application’” to the Federal District Court. Pet. for Cert. 14. Halprin also urges the Court to exercise its “traditional equitable authority” to excuse defaulted claims that do not satisfy § 2244(b)’s literal text. *Id.*, at 15 (internal quotation marks omitted).

Despite these potent arguments, the Court declines to grant certiorari. I do not dissent for two reasons. First, state-court proceedings are underway to address—and, if appropriate, to remedy—Halprin’s assertion that insidious racial and religious bias infected his trial. For its part, the State represents that “Halprin has not been deprived of an opportunity to bring his claim in state court” because the Texas Court of Criminal Appeals recently “stayed his execution and remanded his judicial bias claim to the trial court for review.” Brief in Opposition 21–22; see also *id.*, at 28 (“[A]venues of relief remain, including state habeas proceedings”). Thus, were the Texas courts to agree with Halprin on the merits of his judicial-bias claim, this petition for a writ of certiorari about a federal procedural provision would become moot.

Second, this Court’s denial “carries with it no implication whatever regarding the Court’s views on the merits of” Halprin’s claims. *Maryland v. Baltimore Radio Show, Inc.*, 338 U.S. 912,

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919 (1950) (Frankfurter, J., respecting denial of certiorari). Though the Fifth Circuit has already interpreted §2244 to deny Halprin authorization to file a §2254 petition, this Court’s denial of certiorari does not prevent Halprin from seeking direct review from a constitutional ruling by the Texas courts. Nor does it preclude Halprin from seeking an original writ of habeas corpus under this Court’s Rule 20.

* * *

“[T]he Due Process Clause clearly requires a ‘fair trial in a fair tribuna[l]’ before a judge with no actual bias against the defendant.” *Bracy v. Gramley*, 520 U. S. 899, 904–905 (1997) (citation omitted). I trust that the Texas courts considering Halprin’s case are more than capable of guarding this fundamental guarantee.

Rehearing Denied

No. 19–6427. *SMITH v. CHAPDELAINE, WARDEN, ET AL.*, 589 U. S. 1146;

No. 19–6762. *WIMBERLEY v. SACRAMENTO*, 589 U. S. 1183;

No. 19–6863. *IN RE BONNELL*, 589 U. S. 1201;

No. 19–6931. *JOHNSON v. LINEBARGER GOGGAN BLAIR & SAMPSON, L. L. P.*, 589 U. S. 1215; and

No. 19–7095. *SMITH v. UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA*, 589 U. S. 1255. Petitions for rehearing denied.

No. 19–6846. *RILEY v. METZGER, WARDEN, ET AL.*, 589 U. S. 1160; and

No. 19–6856. *RILEY v. DELAWARE*, 589 U. S. 1160. Petitions for rehearing denied. JUSTICE ALITO took no part in the consideration or decision of these petitions.

APRIL 15, 2020

Miscellaneous Order

In light of the ongoing public health concerns relating to COVID-19:

IT IS ORDERED that with respect to every document filed in a case prior to a ruling on a petition for a writ of certiorari or petition for an extraordinary writ, or a decision to set an appeal for argument, a single paper copy of the document, formatted on 8½ × 11 inch paper, may be filed. The document may be format-

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ted under the standards set forth in this Court's Rule 33.2, or under the standards set forth in Rule 33.1 but printed on $8\frac{1}{2} \times 11$ inch paper. The Court may later request that a document initially submitted on $8\frac{1}{2} \times 11$ inch paper be submitted in booklet format.

IT IS FURTHER ORDERED that the following types of documents should not be filed in paper form if they are submitted through the Court's electronic filing system: (1) motions for an extension of time under Rule 30.4; (2) waivers of the right to respond to a petition under Rule 15.5; (3) blanket consents to the filing of *amicus* briefs under Rules 37.2(a) and 37.3(a); and (4) motions to delay distribution of a cert. petition under the Court's order of March 19, 2020. Notwithstanding Rule 34.6 and paragraph 9 of the Guidelines for the Submission of Documents to the Supreme Court's Electronic Filing System, these enumerated filings should be filed electronically in cases governed by Rule 34.6, although other types of documents in those cases should still be filed in paper form only.

IT IS FURTHER ORDERED that, notwithstanding Rule 29.3, parties may be relieved of the obligation to effect service of paper versions of filings upon other parties if they agree to electronic service; parties are strongly encouraged to use electronic service if feasible.

These modifications will remain in effect until further order of the Court.